

AMIN v VANDENBERG, et al.

20CV44940

**PLAINTIFF'S MOTION FOR LEAVE
TO FILE FIRST AMENDED COMPLAINT**

This is a dog bite/unsafe condition of public premises suit. Before the Court is plaintiff's motion for leave to file a First Amended Complaint.

Pursuant to Calaveras County Superior Court Local Rule 3.3.7 (adopted 1/1/18), "all matters noticed for the Law & Motion calendar **shall** include" specified language in the Notice of Motion, and "failure to include this language in the notice may be a basis for the Court to deny the motion." Based on plaintiff's failure to include the required language, the motion is DENIED, without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

BARR v. COUNTY OF CALAVERAS

18CV42976

DEFENDANT’S MOTION FOR SUMMARY ADJUDICATION

This is an employment dispute, based principally on the claim that plaintiff was blackballed from promotional considerations. Before the Court this day are two separate motions for summary adjudication, collectively attacking the following causes of action contained in the operative Fourth Amended Complaint (filed 09/25/20):

- 1st COA: FEHA (Retaliation)
- 2nd COA: FEHA (Failure to Prevent Retaliation)
- 6th COA: Defamation
- 7th COA: Breach of Mandatory Duties
- 8th COA: Negligence Per Se
- 9th COA: Intentional Infliction of Emotional Distress
- 10th COA: Negligent Infliction of Emotional Distress
- 11th COA: Estoppel
- 12th COA: Breach of Implied-In-Fact Contract
- 13th COA: Breach of Implied Covenant of Good Faith and Fair Dealing
- 14th COA: Common Count

As this Court has previously observed, the varied claims and contentions makes this case a challenge to resolve at any level. To the extent this is ever to reach a jury, management is going to be important.

Requests for Judicial Notice

Plaintiff asks this Court to take judicial notice of nine matters, consisting of four enactments and five job descriptions posted on the County’s website. Asking a court to take judicial notice *of a document* is asking the court to take judicial notice of its existence and – to the extent it is not subject to dispute – the significance or legal effect of its existence, if any. Taking judicial notice of a document does not equate with any determination regarding the truth of its contents or accepting a particular interpretation of its meaning. In fact, the *truth of the contents* will not be considered unless the document (1) is a judgment, statement of decision, or order; (2) reflects statements made by the party against whom it is offered; or (3) contains information which cannot